

#	Case Name	Tentative
50.	Orthopaedic Specialty Institute Medical Group of Orange County v. OCA Care of CA, LLC 2025-01483911	Gary S. Pancer, Sam A. Goli, and Wilson Elser Moskowitz Edelman & Dicker LLP motion to be relieved as counsel for OCA Care of CA, LLC, is CONTINUED to September 28, 2026 at 2:00 p.m. in Department C28. There is no proof of service on the client. (Cal. Rules of Court, Rule 3.1362, subd. (d).) Moving parties shall serve all moving papers on the client, along with a notice of continuance on the client and all parties who have appeared, and shall file proof of service of same, no later than Friday 8/28/26. Moving parties shall give notice of this ruling.
51.	Valvano v. Hurtado 2025-01515962	Attorneys Richard N. Asfar and Adams & Reese, LLP's motion to be relieved as counsel for defendant Jeffrey B. Moreno is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) This order shall become effective upon the filing of the proof of service of the executed order on defendant Moreno. Moving counsel shall give notice of this ruling.
52.	Sunwest Bank v. Encino Towers, LLC 2023-01329501	Anthony O. Egbase, Esq. and A.O.E. Law & Associates, Inc.'s motion to be relieved as counsel of record for Grove Hospice Care, Inc. is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) This order shall become effective upon the filing of the proof of service of the executed order on Grove Hospice Care, Inc. An order to show cause is set for October 2, 2026 at 9:00 a.m. in Department C28. At the hearing, the Court will strike the answer and enter default for defendant Grove Hospice Care, Inc. for their failure to appear through counsel unless they (a) substitute in new counsel before the hearing or (b) appear at the hearing and show good cause otherwise. (<i>CLD Construction, Inc. v. City of San Ramon</i> (2004) 120 Cal. App. 4th 1141, 1146 [holding that a corporation must appear through counsel]; <i>Van Gundy v. Camelot Resorts, Inc.</i> (1983) 152 Cal. App. 3d Supp. 29, 31-32 [court should enter default for corporation that fails to appear through counsel].) Moving counsel shall give notice of this ruling.
53.	Donovan v. Taft	Gina M. Austin, Esq., Tamara Rozmus, Esq., and Austin Legal Group, APC's motion to be relieved as counsel of record for defendant Robert Taft is CONTINUED to October 5, 2026 at 2:00 p.m. in this department.

#	Case Name	Tentative
	2021-01225158	There is no proof of service of the moving papers on the client or anyone else. "The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case." (Cal. Rules of Court, rule 3.1362(d).) While the supporting attorney declaration states that counsel has served the client via mail, this attestation alone is not sufficient to satisfy the service by mail requirements of Code of Civil Procedure section 1013, subdivision (a), or the proof of service requirements of Code of Civil Procedure section 1013a. Moving counsel is ORDERED to (1) properly serve all moving papers, including notice of the continued hearing date above, on the client and all other parties who have appeared in the case; and (2) file proof of service of the same, by no later than Friday 8/28/26. Moving counsel shall give notice of this ruling.
54.	City of Huntington Beach v. Willard Marine, Inc. 2026-01547404	Defendant Willard Marine, Inc.'s motion to strike portions of the Complaint is DENIED. (Code Civ. Proc., §§ 435, 436 [authorizing motion].) Moving party shall file an Answer to the Complaint within 10 days. No point is served in striking a prayer for attorney fees, as "there [is] no requirement they be pled at all." (<i>Snatchko v. Westfield LLC</i> (2010) 187 Cal.App.4th 469, 497.) The Complaint alleges sufficient facts supporting the validity of the challenged liquidated damages provision (Complaint, ¶ 14), which allegations are presumed correct. (<i>Clauson v. Superior Court</i> (1998) 67 Cal.App.4th 1253, 1255 ["In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth"].) Whether the liquidated damages provision is valid, or an unenforceable penalty, requires an examination of "the <u>actual circumstances</u> of a liquidated damages clause." (Civ. Code, § 1671, subd. (b); <i>Graylee v. Castro</i> (2020) 52 Cal.App.5th 1107, 1114, emphasis added; see also <i>Krechuniak v. Noorzoy</i> (2017) 11 Cal.App.5th 713, 722 ["demonstrating the provision is unreasonable requires <u>consideration of existing circumstances relevant to the formation of the contract</u> ... the parties' intent should be derived from the entire agreement and its surrounding circumstances;" emphasis added, internal citations omitted.) Thus, the validity of the liquidated damages provision cannot be determined in the context of a